

SENATE BILL 475

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 39, Chapter 13, Part 2 and Title 40, relative to
criminal sentencing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-35-501(h)(2), is amended by
deleting the subdivision and substituting:

(2) Release eligibility for a defendant committing the offense of first degree
murder on or after July 1, 1995, who receives a sentence of imprisonment for life occurs
after service of sixty percent (60%) of sixty (60) years less sentence credits earned and
retained by the defendant. Notwithstanding the governor's power to reduce prison
overcrowding pursuant to title 41, chapter 1, part 5, any sentence reduction credits
authorized by § 41-21-236, or any other provision of law relating to sentence credits, in
no event shall a defendant sentenced to imprisonment for life be eligible for parole until
the defendant has served a minimum of:

(A) If the defendant was twenty-five (25) years of age or younger at the
time of the offense, twenty-five (25) full calendar years of the sentence; or

(B) If the defendant was twenty-six (26) years of age or older at the time
of the offense, thirty (30) full calendar years of the sentence.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it, and
applies to offenses committed on or after July 1, 1995.